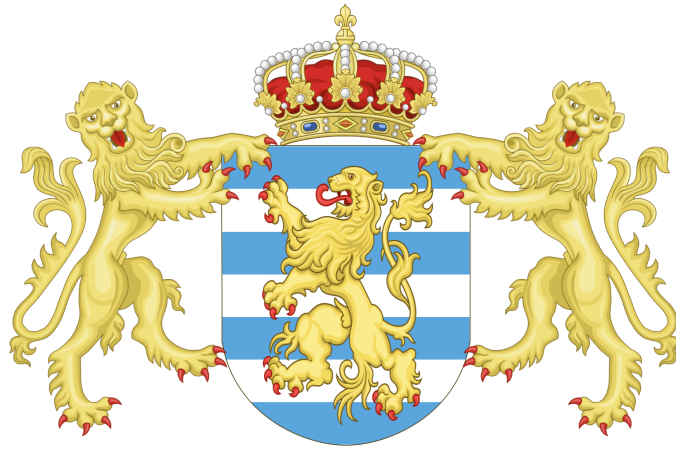




A N A C T

T O

Establish the Civil Code of the Grand Duchy of Eniarku.

***BE IT ENACTED** by the Grand Duke’s most Royal Highness, by and with the advice of His Councillors in this present Council assembled, and by the authority of the same in accordance with the Constitution of the Grand Duchy of Eniarku, as follows:—*

SECTION 1. SHORT TITLE.

This Act may be cited as the “Civil Code Act of 2024”.

SECTION 2. TABLE OF CONTENTS.

The table of contents for this Act is as follows:

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TITLE VI—TORTS, SUITS, AND REMEDIES

- Sec. 601. Torts.
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TITLE VII—MISCELLANEOUS PROVISIONS

- Sec. 701. Amendments.
- Sec. 702. Codification in *Corpus Juris*.

SECTION 3. DEFINITIONS.

- (a) All definitions included in A.S. 2401 §3 are to be construed equally for the purposes of this Act unless otherwise noted.
- (b) “Person” is used to designate any and all natural persons, partnerships, corporations, and other legal entities that may be provided by law.
- (c) “Property” is used to designate any and all types of real and personal property.
- (d) “Estate” is used to designate all property, rights, and obligations that a person leaves at death.
- (e) “Obligation” is used to designate a legal duty to perform or refrain from performing a particular act or action that may arise from law, contract, or a wrongful act or action.
- (f) “Remedy” is used to designate any judicial order enforcing a right or redressing a wrong.
- (g) “Tort” is used to designate a wrong, other than a breach of contract, for which a remedy may be obtained.
- (h) “Action” is used to designate a legal proceeding intended to claim a remedy.
- (i) “Contract” is used to designate a legally binding agreement or instrument between two or more persons, as provided by §§(b).
- (j) “Age of majority” is used to designate the age at which an individual is considered a legal adult.
- (k) “Sound mind” is used to designate an individual’s cognitive capacity to act and make decisions of their own volition and to understand the consequences of those actions and decisions.
- (l) “Reasonable proximity of blood” is used to designate not more than three generations of distance between an individual and their descendants.

TITLE I—GENERAL PROVISIONS

SEC. 101. APPLICABILITY.

- (a) This Act applies to all persons, property and legal entities within the jurisdiction of the State.
- (b) Any conflict with existing or subsequent law pertaining to non-criminal acts or actions shall be resolved in favor of this Act.

SEC. 102. INTERPRETATION.

- (a) Provisions of this Act shall be interpreted according to plain meaning.
- (b) In the event of ambiguity in the terms of this Act or those of subsequent law amending this Act, interpretations shall favor the principles of justice, fairness, and equity.

SEC. 103. GOOD FAITH.

- (a) Any and all persons engaging in a contract must exercise their rights and perform their obligations in good faith.
- (b) Good faith on behalf of any and all persons engaging in a contract is to be presumed prima facie, and this presumption may be set aside only upon reasonable determination by a judicial entity presented with clear and convincing evidence demonstrating that a violation of good faith is highly and substantially more likely to have occurred than to not have occurred.

SEC. 104. STATUTE OF LIMITATIONS.

- (a) Actions must be initiated within one year from the time that the cause of action arises, subject to regulation of law.
- (b) The statute of limitations provided by §§(a) may be extended to within one year from the time that an individual is convicted of committing a criminal act, pursuant to any provision of A.S. 2408, insofar as that criminal act is reasonably determined by a judicial entity presented with clear and convincing evidence to also be the cause of action, subject to regulation of law.

TITLE II—PERSONS

SEC. 201. LEGAL CAPACITY.

- (a) Any and all persons having reached 18 years of age shall be considered to have reached the age of majority.
- (b) Any and all persons that have reached the age of majority and are of sound mind are presumed to have full legal capacity to act and maintain the capacity for rights and obligations until death.
- (c) Minors and incapacitated persons may only act through legal representatives, guardians, or conservators and maintain limited capacity for rights and obligations until reaching the age of majority, subject to regulation of law.

SEC. 202. GUARDIANSHIP; CUSTODY; CONSERVATORSHIP.

- (a) A minor's biological or adoptive parents are the guardians of a minor and maintain custody thereof by default until the minor reaches the age of majority, unless a legal instrument or ruling of a judicial entity has provided otherwise.
- (b) A guardian must act in the best interest of the ward and is entirely responsible for the minor's person.
- (c) A guardian or guardians may be appointed to an individual that has reached the age of majority by a judicial entity acting on preponderance of the evidence

presented that the individual is not of sound mind, and shall be entirely responsible for the individual's person.

- (d) A conservator or conservators may be appointed to an individual that has reached the age of majority by a judicial entity acting on preponderance of the evidence presented that the individual is not of sound mind, and shall be entirely responsible for the individual's property.
- (e) To the extent that a guardian does not concurrently act as an individual's conservator, or that a conservator does not concurrently act as an individual's guardian, an individual's guardian or guardians and conservator or conservators must jointly act in the best interest of the ward and are jointly and entirely responsible for the individual's person and property.
- (f) Individuals under guardianship or conservatorship of another person or persons are legally incapacitated and lack the capacity to act or enter into obligations of their own volition, but maintain their capacity for rights.

SEC. 203. MARRIAGE; ANNULMENT; DIVORCE.

- (a) Marriage is the voluntary and mutually consented upon union of two persons, irrespective of sex or sexual orientation, who have reached the age of majority and who possess legal capacity, pursuant to §201(a) and §201(b) of this Act.
- (b) Persons joined in a marriage shall be known as spouses and are bound by contract to respect each others' persons and share in ownership and inheritance of each others' property, pursuant to any legal instruments that affect the ownership or inheritance thereof.
- (c) A marriage contract shall be dissolved only by annulment, divorce, or death, as follows:
 - (i) An annulment may be granted by a judicial entity only if one or both spouses can demonstrate by presenting clear and convincing evidence that they were coerced into entering the marital contract or otherwise defrauded by the other spouse or spouses and, upon that determination, the marriage shall be declared null and void, the entirety of the spouses' jointly owned property acquired during the marriage shall be distributed according to judicial order, and neither spouse shall owe any sort of support whatsoever to the other, including in the case of child support or alimony.
 - (ii) A divorce may be granted by a judicial entity if one or both spouses can demonstrate upon preponderance of the evidence presented that the differences between them and the other spouse are irreconcilable, the marriage has broken down to a point of irretrievability, one or both spouses has committed adultery, cruelty, or abandonment, a judicial entity has determined that one or both of the spouses are not of sound mind, a judicial entity has convicted one or both of the spouses of a crime pursuant to A.S. 2408, or the spouses have experienced a period of physical separation of no less than three years and, upon that determination, the marriage shall be declared null and void, the entirety of the spouses' jointly owned property acquired during the marriage and any sort of

support whatsoever from one spouse to the other shall be distributed according to judicial order.

- (iii) Upon the death of a spouse, the marriage becomes void for any and all purposes other than those related to the post mortem administration of the estate containing the deceased spouse's person and property.

TITLE III—PROPERTY

SEC. 301. CLASSIFICATION.

- (a) Property is classified as real or personal, as follows:
 - (i) Real property is any property that is immovable, such that it is a fixture of the land on which it sits or any other property already affixed to that land.
 - (ii) Personal property is any property that is movable, subject to ownership, and not classified as real property.
- (b) Real property includes the natural features of the land, irrespective of whether any fixtures exist or are otherwise attached to it.
- (c) Animals are classified as personal property, as follows:
 - (i) Domesticated animals, irrespective of location, are the personal property of their owner or owners.
 - (ii) Wild animals living on real property but not domesticated by the property owner or owners are subject to ownership as personal property only if the animals are tamed and held in possession or hunted or otherwise disabled and immediately pursued by the owner or owners of the real property.

SEC. 302. OWNERSHIP; POSSESSION.

- (a) Ownership of property is the right of one individual to possess, use, and dispose of it to the exclusion of others.
- (b) Co-ownership of property is the right of multiple persons to jointly possess, use, and dispose of it to the exclusion of others.
 - (i) Co-owners of property share equal rights to the property unless otherwise agreed upon by the terms of a legitimate contract.
 - (ii) Co-owners of property may not dispose of, sell, gift, or otherwise transfer the property without the consent of all other co-owners.
- (c) Ownership and co-ownership may be limited and prescribed for by contract, law, or both.
- (d) A person or persons in possession of property is presumed to be the lawful owner until proven otherwise.
- (e) Usufruct grants a person the right to possess, use, and enjoy property without owning it in their own right, and ends upon either party's death or expiration of the agreed upon period of time to possess, use, and enjoy the property.
- (f) Disputes over the possession, use, disposition, sale, gift, inheritance, or disposition of property may be brought before the Crown Council of Appeal or any other judicial entity which subsequent law has established, pursuant to G.D. En. Const. Art. 31, which shall resolve disputes according to the provisions of this Act and may, as the case may be, award damages, enter injunctions, and provide

for any other means of relief demonstrated to be warranted based upon clear and convincing evidence.

SEC. 303. TRANSFER.

- (a) Ownership and co-ownership of property during the lifetime of the owner or lifetimes of the co-owners may be transferred through sale, gift, or inheritance, and all transfers thereof must comply with law or judicial order.
- (b) Any and all transfers of ownership or co-ownership shall be codified in a contract, pursuant to §501 of this Act.

TITLE IV—ESTATES

SEC. 401. WILLS; CODICILS; INTESTACY.

- (a) An individual's will, codicil, and any other instruments designated as such by subsequent law, shall be a written, signed, and witnessed document in which the individual shall clearly and plainly direct the disposition of their estate upon their death.
- (b) An individual's will or codicil may appoint an administrator responsible for carrying out the instructions and terms of the document, and in the event that the document does not appoint such an administrator or no such document exists, one shall be appointed by a judicial entity.
- (c) The administrator shall first use the assets of the estate to pay its debts and taxes, and subsequently, shall transfer the residual assets of the estate to the beneficiaries or heirs thereof.
- (d) Following the distribution provided by §§(c), an individual's estate shall be transferred according to their will or codicil, or, in the event that the individual did not produce a will or codicil, according to the following intestacy provisions:
 - (i) A decedent with no will or codicil leaves the entirety of their estate to their surviving spouse.
 - (ii) In the event that a decedent with no will or codicil has no surviving spouse, the decedent leaves equal portions of their estate to their surviving children or dependents.
 - (iii) In the event that a decedent with no will or codicil has no surviving spouse, children, dependents, or other heirs within reasonable proximity of blood, a judicial entity shall be responsible for making any and all distributions or divisions of the decedent's estate according to the principles of justice, fairness, and equity.
- (e) An individual's will or codicil shall only be challenged before a judicial entity upon the presentation of clear and convincing evidence that the individual, prior to death, was deceived, forced, threatened, or otherwise coerced into producing the will or codicil, and upon such determination by a judicial entity, the will or codicil is null and void.

SEC. 402. TRUSTS.

- (a) Pursuant to §401 of this Act, an individual as the grantor may place a portion of, or the entirety of, their assets into a trust in place of, or in conjunction with, a will

or codicil, and such a will or codicil may, in part or in whole, transfer an individual's assets to the trust upon their death.

- (b) An individual's trust shall be a written, signed, and witnessed document in which the individual shall clearly and plainly direct the management of those trust assets during their lifetime, the disposition of their trust estate upon their death, or both.
- (c) All trusts shall be created inter vivos, via an instrument pursuant to §§(b), or upon the death of the grantor, pursuant to a will or codicil provided by §401 of this Act.
- (d) All trusts shall be revocable or irrevocable, as follows:
 - (i) A revocable trust may be altered, modified, or revoked entirely by the grantor during the lifetime of the grantor, and shall become irrevocable, pursuant to §§(ii), upon the death of the grantor.
 - (ii) An irrevocable trust shall not be altered, modified, or revoked, in part or in whole, by the grantor, or after the death of the grantor by any party, but for the order of a judicial entity upon the presentation of clear and convincing evidence that the grantor, prior to or in the process of the creation of the trust, was deceived, forced, threatened, or otherwise coerced into creating the trust.
- (e) Trusts shall not require a judicial entity to administer their distributions or transfers, either directly or indirectly via the appointment of an administrator as provided by §401(b) and (c) of this Act, but any trust shall appoint such an administrator to be considered valid.
- (f) Joint trusts shall be permitted only for married spouses, pursuant to §203 of this Act, and the spouses shall clearly and plainly direct the management of those joint trust assets during their lifetimes, the transfer of any assets thereof upon the death of one of the spouses to the surviving spouse, the disposition of the joint trust estate upon the death of both of the spouses, or any combination thereof.
- (g) A decedent's or decedents' trust shall only be challenged before a judicial entity upon the presentation of clear and convincing evidence that the individual or individuals, prior to death, was or were deceived, forced, threatened, or otherwise coerced into creating the trust, and upon such determination by a judicial entity, the trust is null and void.

SEC. 403. NON-TRANSFERENCE.

- (a) An individual's will or codicil provided by §401 of this Act shall not be used to transfer or confer any titles, honours, or styles not provided for by A.S. 2402 or subsequent law.
- (b) An individual's trust provided by §402 of this Act shall not be used to transfer or confer any titles, honours, or styles not provided for by A.S. 2402 or subsequent law.

TITLE V—OBLIGATIONS

SEC. 501. CONTRACTS.

- (a) Pursuant to §201(b) of this Act, two or more persons may enter into a contract without the approval of the State, the terms of which are binding upon mutual consent of the parties involved.

- (b) A valid contract requires an offer by one or more of the parties, an acceptance by all of the parties involved, and consideration, which shall consist of a performance or a return promise that has been bargained for and sought by the promisee in exchange for that performance or promise, which may consist of an act or action other than a promise, a forbearance, or the creation, modification, or destruction of a legal relation.
- (c) The obligations codified within a contract must be entered into and performed in good faith by all parties according to the mutually agreed upon terms of the contract.
- (d) Contracts shall be written or typed and signed by all of the parties, and that signing shall be witnessed by a non-contracted third party who shall countersign the contract.
- (e) A contract is void if it is verbal or implied, if its purpose is illegal under current law, if its terms and conditions are functionally impossible to meet by any of the parties, or any combination thereof.
- (f) A contract may be rescinded by any party if they were deceived, forced, threatened, or otherwise coerced into entering the contract.

SEC. 502. BREACH OF OBLIGATIONS.

- (a) A breach occurs when one or several parties to a contract fails to fulfill their obligation or obligations codified within a contract.
- (b) The injured party or parties may seek remedies from a judicial entity, as provided by Title VI of this Act.

SEC. 503. TERMINATION OF OBLIGATIONS.

- (a) The obligations codified within a contract may be terminated upon mutual agreement of all the parties, performance of obligations pursuant to §501 of this Act, breach of obligations pursuant to §502 of this Act, by subsequent law, or by order of a judicial entity.
- (b) Force majeure may excuse performance or breach of obligations insofar as the event was, or events were, beyond the control of the obligor, subject to review of all relevant materials by a judicial entity.

TITLE VI—TORTS, SUITS, AND REMEDIES

SEC. 601. TORTS.

- (a) A tort or tortious act is a civil wrong committed by one individual causing injury or loss to another individual.
- (b) Tortious acts include negligence, intentional wrongdoing, and strict liability, as follows:
 - (i) Negligence occurs when an individual fails to exercise reasonable care in their acts or actions, resulting in harm to another.
 - (ii) Intentional wrongdoing occurs when an individual deliberately causes harm to another.
 - (iii) Strict liability applies when an individual is held responsible for harm regardless of negligence, pursuant to §§(i), or intent, pursuant to §§(ii).

- (c) A tort or tortious act shall include those actions, offenses, or crimes provided by A.S. 2408, irrespective of whether the accused individual is convicted by a criminal tribunal pursuant to §503 of that Act, subject to the limitations provided by §602 and §603 of this Act.

SEC. 602. SUITS.

- (a) Claims of a tort or tortious act provided by §601 of this Act may be brought by the injured party against the tortfeasor as suits before a randomly selected panel of three members of the Crown Council of Appeal or any other judicial entity provided by subsequent law.
- (b) Suits related to claims of a tort or tortious act must be initiated within one year from the time that the tort or tortious act occurs, subject to regulation of law.
- (c) The statute of limitations provided by §§(b) may be extended to within one year from the time that an individual is convicted of committing a crime pursuant to any provision of A.S. 2408, insofar as that crime is determined by a judicial entity presented with clear and convincing evidence to be reasonably related to the civil tort, subject to regulation of law.
- (d) Suits related to claims of a tort or tortious act shall not be initiated against the Crown or State in either a personal or official capacity.

SEC. 603. REMEDIES.

- (a) Damages may be awarded to a party filing a suit pursuant to §602 of this Act, as follows:
 - (i) Compensatory damages shall be awarded to the filing party to cover or account for actual or expected losses arising from a tort or tortious act that can be demonstrated to a judicial entity upon preponderance of the evidence.
 - (ii) Punitive damages shall be awarded to the filing party to punish wrongful or illicit conduct, pursuant to any provision of A.S. 2408, that can be demonstrated to a judicial entity upon preponderance of the evidence.
- (b) In the event that damages are insufficient to properly address the tort or tortious act, or that an ongoing tort or tortious act or acts are continually damaging an individual, a judicial entity may order specific performance or an injunction, instead of or in addition to ordering the breaching party to fulfill their contractual obligations or obligations.

TITLE VII—MISCELLANEOUS PROVISIONS

SEC. 701. AMENDMENTS.

- (a) Any section or provision of this Act may be amended, modified, altered, or repealed, in part or in its entirety, at any time by the Council of State as chaired by The Sovereign.
- (b) Any section or provision of this Act that is amended, modified, altered, or repealed, in part or in its entirety, pursuant to §§(a), shall be appropriately marked by strike-through text.

SEC. 702. CODIFICATION IN *CORPUS JURIS*.

- (a) Pursuant to A.S. 2401 §202(a), the entirety of this Act should be codified under sub-units of Title 9 of the *Corpus Juris* by default.
- (b) Pursuant to A.S. 2401 §202(c)-(d), the Council of State reserves the right to codify particular provisions of this Act under other Titles of the *Corpus Juris* in a manner that may be provided for by law.
- (c) Pursuant to A.S. 2401 §301, the Council of State reserves the right to codify (or re-codify) particular provisions of this Act in the *Corpus Juris* as amended, modified, altered, or repealed, in a manner that may be provided for by law.

BY AND UNDER THE SEAL OF THE CROWN-IN-COUNCIL, SO ENACTED THIS
TWENTY-SIXTH DAY OF SEPTEMBER, TWO THOUSAND AND TWENTY-FOUR.

A handwritten signature in red ink, reading "Alexander". The signature is written in a cursive style with a large, stylized initial 'A'.